

22STCV02817 22STCV02817

County: los-angeles

Division: Civil Law and Motion

Department: 205

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Case Number: 22STCV02817 Hearing Date: August 21, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

GREEN & MCCAILL HOLDINGS LIMITED,

Plaintiff,

v.

JCTLA INVESTMENT CORPORATION, et al.,

Defendants.

Case No.: 22SMCV02817

Hearing Date: August 21, 2026

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION TO

STRIKE OR TAX DEFENDANT'S COSTS

BACKGROUND

This case arises from breach of a loan agreement. Plaintiff alleges it loaned Defendant \$529,000 bearing an interest of 8%, to be compounded annually. Defendant repaid the principal amount but failed to pay the interest due.

On June 10, 2026, Plaintiff filed a request for dismissal of its action, without prejudice. On June 26, 2026, Defendant filed a memorandum of costs (summary) which sought \$877.91 in filing and motion fees.

This hearing is on Plaintiff's motion to tax costs. Plaintiff argues that because Defendant did not itemize the pleadings or motions that correlate with the filing or motion fees, and the charges appear to include more than filing or motion fees (as they include fractional dollar amounts), Defendant's requested costs should be struck or taxed. There is no opposition filed to the motion to tax costs.

LEGAL STANDARD

Generally, a "prevailing party" is entitled to costs. (Code Civ. Proc., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.). "A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules of Court, rule 3.1700.)

The losing party may contest the costs that a prevailing party seeks. (Code Civ. Proc., §1034(a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (*Adams v. Ford Motor Co.*, (2011) 199 Cal. App. 4th 1475, 1486; 612; *South LLC v. Laconic Limited Partnership*, (2010) 184 Cal. App. 4th 1270, 1285.)

Code Civ. Proc. § 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., § 1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) A "properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred." (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.)

This puts the burden on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) If items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.*)

The memorandum of costs need not contain invoices, billings, or statements. (*Bach*, 215 Cal.App.3d at 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).) "Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs." (*Bach*, 215 Cal.App.3d at 308.)

DISCUSSION

Defendant claims \$877.91 in filing or motion fees. Plaintiff argues that these costs should be taxed because Defendant does not identify a single filing or motion, does not attach a receipt or invoice, does not explain how it arrived at the amount claimed, and does not otherwise provide enough information to determine whether a claimed item is a proper and recoverable charge. Plaintiff also notes that the claimed amount is not a sum of standard court fees because court filing and motion fees are fixed, round amounts. The claimed figure of \$877.91 includes a fractional-dollar component which indicates that Defendant has bundled into this category other charges which may not be recoverable under section 1033.5. Defendant has not filed an opposition or otherwise provided support for the costs it seeks. Accordingly, as Plaintiff's motion to tax costs is unopposed, the Court will grant the motion and tax the costs.

CONCLUSION

For the foregoing reasons, the Court GRANTS the motion to tax costs.

IT IS SO ORDERED.

DATED: August 21, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court